other, under such regulations as the Postmaster General shall prescribe.

Whoever knowingly deposits for mailing or delivery, or knowingly causes to be delivered by mail according to the direction thereon, or at any place to which it is directed to be delivered by the person to whom it is addressed, any pistol, revolver, or firearm declared nonmailable by this section, shall be fined not more than $1,000 or imprisoned not more than two years, or both.

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25; 5 U. S. C. 22, 369. Interprets or applies 62 Stat. 782, as amended; 18 U. S. C. and Sup., 1715)

b. In § 51.1 *Village delivery* (39 CFR 51.1) amend paragraph (a) (1) to read as follows:

(1) Village mail delivery may be established under such regulations as the Postmaster General may prescribe, in towns and villages having post offices of the third class that are not by law entitled to free-delivery service. The operation by the Post Office Department of village delivery service in second-class post offices shall be discontinued.

NOTE: See § 137.48 for additional provisions, and effective date of Public Law 431.

(R. S. 161, 396, sec. 9, 37 Stat. 559, as amended; secs. 304, 309, 42 Stat. 24, 25; 5 U. S. C. 22, 369, 39 U. S. C. and Sup., 153)

c. In Part 97 (39 CFR, Part 97) make the following changes:

1. Amend § 97.2 *Contracts for service by air because of impracticability of surface transportation* (39 CFR 97.2) to read as follows:

§ 97.2 *Contracts for service by air because of impracticability or inadequacy of surface transportation*—(a) *Action by Postmaster General.* Whenever he shall find it to be in the public interest, because of the nature of the terrain, or the impracticability or inadequacy of surface transportation, and where the cost thereof is reasonably compatible with the service to be provided, the Postmaster General may award contracts for the transportation by aircraft upon star routes of any or all classes of mail (including but not limited to air mail and air parcel post), payment for such service to be made from the appropriation for inland transportation by star routes: *Provided*, That all laws and regulations not in conflict with this section governing star routes shall be applicable to contracts made under the authority of this section: *Provided further*, That the provisions of title IV of the Civil Aeronautics Act of 1938, approved June 23, 1938 (52 Stat. 973), as amended, other than sections 407, 408, 409, 412, 413, 414, and 416 thereof shall not apply to the transportation of mail under this section: *Provided further*, That prior to advertising for bids for the transportation of mail by aircraft on any star route, except as authorized by the act of October 14, 1940 (54 Stat. 1175), entitled "An act authorizing special arrangements in the transportation of mail within the Territory of Alaska," the Postmaster General shall obtain from the Civil Aeronautics Board a certification that the proposed route does not conflict with the development of air transportation as contemplated under the Civil Aeronautics Act of 1938, as amended: *Provided further*, That any such contract made under authority of this section shall be canceled upon the issuance by the Civil Aeronautics Board of an authorization under title IV of the Civil Aeronautics Act of 1938, as amended, to any air carrier to engage in the transportation of mail by aircraft between any of the points named in such contract: *And provided further*, That no bid for a contract under this section shall be considered unless the bidder is a resident of or qualified to do business as a common carrier by air in a State within which one or more points to be served under such proposed contract are located. As used in this section, the term "State" includes the several States, the Territories of Alaska and Hawaii, and the District of Columbia.

(b) *Action by Civil Aeronautics Board.* Upon receipt of a request from the Postmaster General for the certification required in paragraph (a) of this section, the Civil Aeronautics Board shall promptly publish in the FEDERAL REGISTER, and send to such persons as the Board may by regulation determine, a notice describing the proposed air star route. After giving notice pursuant to this subsection, the Board shall afford interested persons a reasonable opportunity to submit written data, views or arguments with or without opportunity to present the same orally in any manner. The Board shall give due consideration to all relevant matter presented and, not less than thirty days after notice is given, except in any situation in which it for good cause finds (and incorporates the finding and a brief statement of the reasons therefor in its order granting certification) that such period of advance notice is impracticable, unnecessary or contrary to the public interest, shall grant the requested certification upon finding that the proposed route does not conflict with the development of air transportation as contemplated under the Civil Aeronautics Act of 1938, as amended.

(Interprets or applies sec. 6, 52 Stat. 219, as amended; 39 U. S. C. and Sup., 470)

2. Add a new section, § 97.74 *Utilization of Coast Guard facilities and personnel*, in the text immediately following § 97.73 to read as follows:

§ 97.74 *Utilization of Coast Guard facilities and personnel.* Coast Guard facilities and personnel may be utilized for the transportation and delivery of mail matter during emergency conditions or at isolated locations under such arrangements as may be satisfactory to the Secretary (of the Treasury) and the Postmaster General.

(Interprets or applies 63 Stat. 506; 14 U. S. C. Sup., 146)

(R. S. 161, 396, secs. 304, 309, 42 Stat. 24, 25; 5 U. S. C. 22, 369)

[SEAL] J. M. DONALDSON,
Postmaster General.

[F. R. Doc. 50-4177; Filed, May 16, 1950; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 645]

ARIZONA

REVOKING IN PART EXECUTIVE ORDER NO. 1187 OF APRIL 9, 1910

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943 it is ordered as follows:

Executive Order No. 1187 of April 9, 1910 withdrawing public lands for the use of the War Department for military purposes is hereby revoked so far as it affects the following-described land:

GILA AND SALT RIVER MERIDIAN

T. 1 N., R. 3 W.,
Sec. 19, NE¼.

The area described contains 160 acres.

The land shall not be subject to the initiation of any rights or to any disposition under the public-land laws until it is so provided by an order of classification to be issued by the Regional Administrator, Bureau of Land Management, Albuquerque, New Mexico, opening the land to application under the Small Tract Act of June 1, 1938, 52 Stat. 609 (43 U. S. C. 682a) as amended, with a ninety-day preference right period for filing such applications by veterans of World War II and other qualified persons entitled to preference under the act of September 27, 1944, 58 Stat. 747, as amended (43 U. S. C. 279 et seq.).

C. GIRARD DAVIDSON,
Acting Secretary of the Interior.

MAY 10, 1950.

[F. R. Doc. 50-4177 Filed, May 16, 1950; 8:46 a. m.]

[Public Land Order 646]

CALIFORNIA

WITHDRAWING PUBLIC LANDS FOR USE OF THE DEPARTMENT OF THE AIR FORCE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Subject to valid existing rights, the public lands within the following-described areas are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for the use of the Department of the Air Force as an air force base:

SAN BERNARDINO MERIDIAN

T. 10 N., R. 8 W.,
Sec. 18, NE¼, lots 1 and 2 of the NW¼, and N½ of lots 1 and 2 of the SW¼.
T. 8 N., R. 9 W.,
Sec. 10, S½SE¼;
Sec. 18, SE¼;
Sec. 23, W½.
T. 10 N., R. 9 W.,
Sec. 14, SE¼;
Sec. 22, E½, SW¼, S½NW¼;
Sec. 24, N½NW¼;
Sec. 30, SW¼SE¼.